



POLICE DEPARTMENT

February 27, 2012

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Jose Santiago  
Tax Registry No. 932215  
Quartermaster Section  
Disciplinary Case No. 85790/09

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The above-named member of the Department appeared before me on September 23, 2011, October 14, 2011, and October 21, 2011, charged with the following:

1. Said Police Officer Jose Santiago, while on-duty and assigned to the 90<sup>th</sup> Precinct, on or about and between April 22, 2008 and April 28, 2008, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer did issue Eric Santiago a summons, for an arrestable offense, in lieu of gaining information regarding criminal acts.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT - PROHIBITED  
CONDUCT  
GENERAL REGULATIONS

The Department was represented by Pamela Naples, Esq., Department Advocate's Office, and Respondent was represented by John Tynan, Esq.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

It is recommended that that the single specification pending against Respondent be Dismissed.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Eric Santiago and Sergeant Michael Cafero as witnesses.

Eric Santiago

Eric Santiago ("Eric") was arrested for firearms possession in May, 2008, and is presently incarcerated. Eric also has approximately four or five past drug convictions. After his arrest, Eric was asked by detectives if he had information about drugs or other crimes that occur in his neighborhood. Eric told the detectives that in April, 2008, a narcotics officer, Respondent, searched him and planted a plastic bag of cocaine in his wallet and then placed him under arrest. Eric claimed that Respondent then told him that if Eric helped him out then Respondent would help Eric out. Eric perceived that to mean that if he gave Respondent a "bust" then Respondent would write him a "bogus ticket."

While Eric was at the precinct, Respondent told Eric that Respondent was going to help Eric out and then gave Eric a summons for Trespass with a "bogus date." In return, Respondent told Eric that "he has to help him out now." Respondent and Eric exchanged cell phone numbers and Eric was released. He and Respondent subsequently contacted each other by phone. Respondent also contacted him via Eric's wife's phone, although Eric did not know how Respondent got that number.

At some point after Eric was issued the summons, he was on his way to a barbershop when he received a call from Respondent. Respondent asked Eric to gather information on a person named "Person A," who was Eric's barber, because Respondent believed Person A was selling drugs and laptops from the basement of the barbershop.

Eric told Respondent that he would call Person A and ask him to come to Grand Street; however, Respondent requested that Person A should meet Eric at the corner of Metropolitan Avenue and Havemeyer Street instead. When Eric arrived at that location, he noticed that Respondent and his partner had searched and arrested Person A. Eric was then told to leave by Respondent.

During cross-examination, Eric stated that he is a predicate felon and is incarcerated in Cape Vincent Correctional Facility for a term of one and a half to three years for attempted criminal possession of a weapon [third degree].

At the time Eric filed his complaint with the Internal Affairs Bureau (IAB), he was using marijuana and selling heroin and cocaine. He also said that when he first filed his complaint, he was in Rikers Island awaiting the outcome of his firearm possession case. Eric said he took the blame for the firearms and pled guilty as charged to absolve his parents of the arrest. Since the firearms were recovered at Eric's parents' residence, his parents were also arrested and charged.

Eric said he was not related to Respondent, who he called, "that piece of shit" and said, "I don't like cops...Because when I was younger I was a bad boy...I didn't like to follow rules." He is 35 years old and of the last 15 years, he has spent "13, 14 maybe less...In and out in and out" of prison.

Eric remembered being interviewed on May 2, 2008, by IAB but did not remember telling IAB that he was “high” while making the report. Eric said he had seen Respondent many times before around his neighborhood and said he was known to be a “dirty” cop. Eric stated that he did not have drugs on him when he was issued the summons for Trespass and maintained that Respondent planted a bag of cocaine in his wallet. Eric admitted that he has been arrested three times for selling drugs and was subsequently placed on parole. While on parole, Eric was still carrying drugs and violated his parole twice.

Eric stated that on April 22, 2008, after he was arrested and brought to the 90 Precinct, he had the opportunity to tell the desk officer about Respondent’s conduct; but it was not until ten days later, after he was arrested for weapons possession, that he notified IAB about his encounter with Respondent.

During redirect examination, Eric stated that in April, 2008, he did not know Respondent was having an affair with his [Eric’s] wife, Jessemia Ramos. Also in April, 2008, Eric was residing with Ramos.

Sergeant Michael Cafero

Cafero, a 17-year member of the Department, is presently assigned to the 120 Precinct Detective Squad. While Cafero was assigned to IAB Group 31, he investigated allegations that Respondent issued Eric a summons on April 22, 2008, and “was asking Eric Santiago if he was involved in criminal activities.”

After speaking with Eric about the incident, Cafero attempted to locate a copy of the summons that was issued to Eric. Cafero found that the 90 Precinct’s Command Log

showed that Eric was arrested on April 22, 2008, brought to the precinct and issued a summons [# 423034821-6] [Department's Exhibit (DX) 3]. However, upon a review of Respondent's Stop, Question and Frisk Report activity (DX 1) and summons activity (DX 2), Cafero could not find that Eric had been stopped or summonsed by Respondent on the alleged date. Even after trying to track the summons to the New York City Department of Finance, Cafero did not locate the summons.

Because Eric alleged that Respondent called him several times on two different numbers to ask him about information regarding Person A's involvement in criminal activities, Cafero examined Respondent's telephone records (DX 4) and learned that Respondent called Eric several times between the day Eric was summonsed, April 22, 2008, and the day Person A was arrested, April 28, 2008. Respondent contacted Eric on two separate telephone numbers. The first number, also used by Ramos, was [REDACTED] and the second number was [REDACTED] [According to DX 4, the former number was called twice on April 23, 2008, and thrice on April 28, 2008. The latter number was called twice on both dates.] Moreover, Respondent's Activity Log (DX 5), precinct roll call, and Respondent's property voucher indicated that Person A was arrested by Respondent's partner.

During cross-examination, Cafero testified that during his interview with Eric, Eric did not mention he was searched by Respondent. Further, Eric told Cafero that he never observed anyone remove any drugs from his person and that the drugs were recovered from the lobby of the building where Eric's mother lived. However, during his investigation, Cafero learned that Eric was not arrested for drug possession nor were there any drugs vouchered subsequent to Eric's arrest.

Cafero stated that he did not interview anyone else in the precinct about the whereabouts of the missing summons. He also did not know if Respondent spoke with Eric or Ramos on the [REDACTED] number.

Cafero acknowledged that he could not explain what "seizure duration," "call direction" or "calling party number" represented on Respondent's phone records (DX 4). Cafero also could not explain if Respondent's own number would have been listed on the phone record had he called his own voicemail.

#### Respondent's Case

Respondent testified in his own behalf.

#### Respondent

Respondent, an eight-year member of the Department, is currently the field intelligence officer at the 90 Precinct. He guessed that he has made "close to 300" narcotics-related arrests in his career. In April, 2008, he was assigned to the Burglary Apprehension Team, worked in both uniform and plainclothes, and typically patrolled areas that were experiencing burglaries. Although Respondent was assigned to the Burglary Apprehension Team, his arrests were not solely limited to burglaries, and on an average day he interacted with "20, 30, 50" people per day. He recognized Eric because he is "a local drug dealer." Respondent said that on April 22, 2008, he did not recover or plant narcotics on Eric. Respondent averred that he has participated in over a thousand narcotics-related arrests, and has "zero tolerance" for drugs, and if Eric had drugs on him, Eric would have been arrested for drug possession.



Respondent stated that 282 South Second Street [where Eric was arrested on April 22, 2008] through 284 South Second Street were high-crime buildings where drug dealers were “on the corner” and drug users would commit car break-ins and burglaries.

During cross-examination, Respondent acknowledged that he is supposed to document all arrests and summonses in his Activity Log. Respondent acknowledged that he had no entry in his Activity Log related to the trespass summons he issued to Eric on April 22, 2008. However, Respondent did document in his Activity Log that at 1453 hours on April 28, 2008, the person he helped his partner arrest [Person A] was found in possession of a controlled substance.

Upon questioning by the Court, Respondent testified that he met Ramos while working, spoke with her on the phone, and even went out with her “once or twice.” Respondent did not remember her name and also denied having an affair with her. Respondent stopped seeing Ramos once she told Respondent that her husband was a drug dealer.

During recross-examination, Respondent stated that he did not recall telling IAB that he had a relationship with Ramos.

#### The Department’s Rebuttal Case

The Department called Jessemia Ramos as a witness on rebuttal.

Jessemia Ramos

Ramos testified that at the time of the incident, she had been residing with Eric for four years. Although not legally married, Ramos and Eric had a child in common. She testified that she shared her cell phone with Eric and her cell phone number was [REDACTED]

[REDACTED] In April, 2008, she received a phone call from Respondent during which Respondent asked to speak with Eric. She confronted Eric about the phone call and learned that Eric was arrested and gave Respondent her phone number because Eric was supposed to give Respondent some information. As far as she knew, Eric did not give information to Respondent. Ramos denied having had any social relationship with Respondent.

During cross-examination, she said that she and Eric separated shortly after the incident in April, 2008.

#### FINDINGS AND ANALYSIS

Respondent stands charged herein with one specification which alleges that while on-duty and assigned to the 90 Precinct, on or about and between April 22, 2008, and April 28, 2008, he did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer did issue Eric Santiago a summons, for an arrestable offense, in lieu of gaining information regarding criminal acts.

Evidence adduced at trial established that upon review of the 90 Precinct Command Log for April 22, 2008, Eric was arrested and issued a summons for Disorderly Conduct and Trespass. The arrest location is noted as 282 South Second Street. The Command Log also lists Eric's address as the same location. Eric testified at



this proceeding and said that the arrest location was his mother's address and thus he was not trespassing. He also stated that he was issued this summons which was, in his words, "bogus" because Respondent wanted him to cooperate with a drug bust of someone else.

Eric further testified about how the events unfolded on the date of his arrest; April 22, 2008. He exited his mother's building and Respondent's partner went into the building and came out with something. Eric said his back was to Respondent when Respondent walked up to him and informed him that he [Respondent] had recovered a plastic bag of cocaine from his [Eric's] wallet. He said he was placed in handcuffs and put into a black Impala. Once at the station house, Eric informed Respondent that he was on parole and inquired as to why Respondent was doing this to him. Respondent said that if Eric got him a "collar" or "bust" [arrest], he would write Eric a "bogus" ticket.

Eric explained that he received a trespass summons from Respondent. Respondent informed him that the summons was "bogus" and that the date on the summons was incorrect, so he did not have to worry about the summons. Respondent also told Eric that he needed help later on. Eric was then released from police custody. Eric said Respondent gave him his cell phone number. They contacted each other. Respondent contacted Eric on his cell phone and even contacted him on Eric's wife's cell phone. Eric did not know how Respondent obtained his wife's number because he did not give it to him.

Eric said Respondent wanted him to find information regarding his barber, Person A. Respondent suspected that Person A sold drugs out of his basement and also bought and sold computers and laptops<sup>1</sup> there. Based on his conversation with Respondent, Eric said he arranged to meet Person A. He told Person A that he had money for him so to meet him at

<sup>1</sup> Although not in Eric's testimony, we might assume he meant "stolen" computers and laptops.

Metropolitan Avenue and Havemeyer Street. As Eric approached that intersection, he observed Respondent and his female partner approach Person A, search his car and lock him up. Eric said he continued toward the car to find out what was going on, but Respondent told him to get away or he would be locked up.

Eric claimed that Respondent is known in the neighborhood as being a no-good cop who is "dirty." He said the evidence of this is that Respondent planted cocaine in his wallet and only charged him with trespassing.

The first problem with this case is that the Department relies almost entirely on Eric's testimony. Eric has multiple felony convictions, a long criminal record and is a neighborhood drug dealer who said he hates police officers in general and Respondent in specific. His testimony, standing alone, cannot be relied on. The evidence that has been offered to support or corroborate what Eric testified to is simply inadequate. For example, Eric testified that the trespass summons he was issued was "bogus" yet there is no proof of this. The summons itself was never produced and some of the allegations, such as the claim that the wrong date was intentionally put on the summons, rely solely on Eric's testimony.

While there was some question as to whether a sufficient effort was made to locate the summons, the fact is that it was not produced.

The Command Log (DX 3), which provides basically the only information we have about the summons, refers to it and lists the summons number. The Command Log also indicates that Respondent's address and the location where the trespass or disorderly conduct occurred was the same. While that might support Eric's complaint that the summons was "bogus," the Command Log also notes that the summons was verified by

Sergeant Benson. This would indicate that the summons was reviewed and found to be appropriate by a supervisor.<sup>2</sup>

Certainly, the fact that Respondent's Activity Log failed to record his interaction with Eric is troubling – but it is not charged.

What is charged is that Respondent failed to make an arrest for an “arrestable” offense. This brings us to the central problem with this case. There is no proof that Eric committed an offense for which an arrest is mandatory.

The Department's claim, apparently, is that Eric had drugs on him and that Respondent should have effected an arrest for possession of drugs. The problem is that there is no evidence, credible or otherwise, that Eric was in possession of drugs.

Eric denied that he was in possession of drugs. He said that Respondent or his partner recovered drugs somewhere else and that Respondent falsely claimed that he found the drugs in Eric's wallet. So Eric's testimony does not provide evidence that Respondent could have made a valid arrest for possession of drugs. No drugs were recovered, no drugs were vouchered, nor is there any other evidence that Eric was in possession of drugs. The central premise of this single charge against Respondent, that he failed to make a mandatory arrest, is unproven.

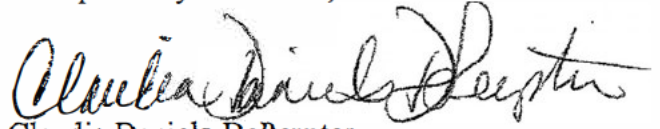
To be sure, there is evidence that Respondent was in touch with Eric after April 22 and that he and his partner later arrested Person A in a major narcotics case. These facts might give some credence to Eric's claim that Respondent sought and possibly obtained information about Person A from him, but they do not support the charge that he could have and should have arrested Eric for drug possession.

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<sup>2</sup> It should be noted that there is no indication in the record as to whether Respondent was asked to produce his summons book.

Accordingly, the Department has failed to make out a *prima facie* case against Respondent. For that reason it is recommended that the single specification pending against Respondent be Dismissed.

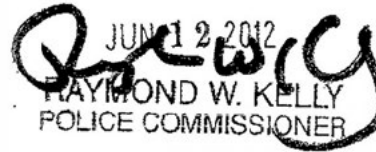
Respectfully submitted,



Claudia Daniels-DePeyster

Assistant Deputy Commissioner – Trials

**APPROVED**



JUN 12 2012  
RAYMOND W. KELLY  
POLICE COMMISSIONER